

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MARLENE BAPTISTE, MEGAN BAPTISTE, AND
ROMELL HOYLE,

Plaintiffs,

-against-

CITY OF NEW YORK, MELVIN CORDERO, BRIAN
GRIBBIN, PIOTR ZEBROWSKI, JASON DAWKINS,
ANGEL THEVENIN, DAVID DESIMONE, OMAIN
FREELAND, EDWARD NAJARRO, PAUL DAWKINS,
DARRYLE LAMB, TIMOTHY HARRINGTON, AND
JOHN OR JANE DOE 1-10,

Defendants.

Index No.:

Purchased:

Plaintiffs designate
Kings County as the place of trial

The basis of the venue is where the
injury occurred

SUMMONS

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
November 5, 2021



SIM & DEPAOLA, LLP

By: ATAUR RAQUIB, Esq.

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TO: **CORPORATION COUNSEL OF THE CITY OF NEW YORK**
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MELVIN CORDERO

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c/o NYPD Headquarters
1 Police Plaza Path
New York, New York 10038

BRIAN GRIBBIN

Tax Id. No., 945790 and Shield No. 759
c/o NYPD Headquarters
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New York, New York 10038

PIOTR ZEBROWSKI

Tax Id. No., 946410 and Shield No. 4770
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DAVID DESIMONE

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EDWARD NAJARRO

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1 Police Plaza Path
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PAUL DAWKINS

Tax Id. No., 953803 and Shield No. 1571
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1 Police Plaza Path
New York, New York 10038

JASON DAWKINS

c/o NYPD Headquarters
1 Police Plaza Path
New York, New York 10038

OMAIN FREELAND

c/o NYPD Headquarters
1 Police Plaza Path
New York, New York 10038

ANGEL THEVENIN

Shield No. 2747
c/o NYPD 90th Precinct
211 Union Avenue
Brooklyn, New York 11211

DARRYLE LAMB

Tax Id. No., 933910 and Shield No. 7060
c/o NYPD Headquarters
Health & Wellness Section
1 Police Plaza Path
New York, New York 10038

TIMOTHY HARRINGTON

Tax Id. No., 917095
c/o NYPD Building Maintenance Section
50-98 59th Place
Woodside, New York 11377

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MARLENE BAPTISTE, MEGAN BAPTISTE, AND
ROMELL HOYLE,

Plaintiffs,

Index No.:

Purchased:

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, MELVIN CORDERO, BRIAN
GRIBBIN, PIOTR ZEBROWSKI, JASON DAWKINS,
ANGEL THEVENIN, DAVID DESIMONE, OMAIN
FREELAND, EDWARD NAJARRO, PAUL DAWKINS,
DARRYLE LAMB, TIMOTHY HARRINGTON, AND
JOHN OR JANE DOE 1-10,

Defendants.

-----X
Plaintiffs, MARLENE BAPTISTE, MEGAN BAPTISTE, AND ROMELL HOYLE, by
their attorneys, Sim & DePaola, LLP, for their complaint against the above Defendants, alleges
as follows:

1. This is a civil rights action, in which Plaintiffs seek relief, vis-à-vis 42 U.S.C. §§ 1983, 1985, 1986 and 1988, the laws of the State of New York, in addition to the self-executing clauses or implied private causes of action within the New York State Constitution, for the violations of their civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, as well as the Laws and Constitution of the State of New York.
2. The following claims arise from an incident on November 20, 2019, in which Defendants, acting under color of state law, unlawfully detained, questioned, searched, handcuffed and arrested Plaintiffs inside the vicinity of the 1322 Sterling Place, Apt. 1L, within the County of Bronx, City and State of New York. Plaintiffs

Marlene Baptiste and Megan Baptiste were illegally detained, cuffed, and questioned.

As a result, Plaintiffs Marlene Baptiste and Megan Baptiste were deprived of their liberties and suffered various physical, emotional and psychological injuries.

Plaintiffs Marlene Baptiste and Megan Baptiste were wrongfully detained in their apartment over the course of three hours. Plaintiff Romell Hoyle was falsely arrested, subsequently transported to the 77th precinct and later to Bronx County Central booking. As a result, Plaintiff Romell Hoyle was deprived of his liberties and suffered various physical, emotional and psychological injuries. Plaintiff Romell Hoyle was wrongfully detained over the course of two (2) days. Plaintiff Romell Hoyle was maliciously prosecuted until his charges were dismissed on January 7, 2020.

3. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
4. Within 90 of the claims herein, Plaintiffs timely served notices of claim, upon the City of New York.
5. Over 30 days have elapsed since the filing of their notices, and this matter has not been settled or otherwise disposed of.
6. Plaintiffs have complied with municipal Defendant's request for an oral examination, pursuant to Section 50-H of the New York General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
7. This action and associated claims have been commenced within one-year-and-ninety-days after the occurrences upon which they are based and upon availing Executive Order 202.8 *et seq.* issued by former Governor Andrew Cuomo in response ongoing

COVID-19 pandemic that tolled the statute of limitations for the period from March 20, 2020, to November 4, 2020.

8. Plaintiffs seek monetary damages (compensatory and punitive) against Defendants, an award of costs and reasonable attorneys' fees, and such other and further relief as this Court may deem just and proper.

PARTIES

9. Plaintiffs, Marlene Baptiste ("Marlene"), Megan Baptiste ("Megan"), and Romell Hoyle ("Mr. Hoyle") presently reside in Kings County, within the City and State of New York.
10. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.
11. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, captains, lieutenants and other supervisory officers or officials, as well as the individually named NYPD Defendants herein.
13. In addition, at all times here relevant, Defendant, City, was responsible for enforcing the rules or regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the State of New York.
14. Defendant, MELVIN CORDERO, ("CORDERO"), was, at all times here relevant, a detective employed by the NYPD and, as such, was acting in the capacity of agent,

servant and employee of the Defendant, City of New York. Defendant CORDERO, was, at the times relevant herein, a detective, assigned to the Narcotics Borough of the Bronx, located at New York City Police Department, 1 Police Plaza Path, New York, New York 10038. Defendant CORDERO is being sued in his individual and official capacity.

15. Defendant, BRIAN GRIBBIN, (“GRIBBIN”), was, at all times here relevant, a sergeant employed by the NYPD and, as such, was acting in the capacity of agent, servant and employee of the Defendant, City of New York. Defendant GRIBBIN, was, at the times relevant herein, sergeant, assigned to the Narcotics Borough of the Bronx, located at New York City Police Department, 1 Police Plaza Path, New York, New York 10038. Defendant GRIBBIN is being sued in his individual and official capacity.

16. Defendant, PIOTR ZEBROWSKI (“ZEBROWSKI”), was, at all times here relevant, a detective employed by the NYPD and, as such, was acting in the capacity of agent, servant and employee of the Defendant, City of New York. Defendant ZEBROWSKI, was, at the times relevant herein, detective, assigned to the Narcotics Borough of the Bronx, located at New York City Police Department, 1 Police Plaza Path, New York, New York 10038. Defendant ZEBROWSKI is being sued in his individual and official capacity.

17. Defendant, JASON DAWKINS (“J. DAWKINS”), was, at all times here relevant, a detective employed by the NYPD and, as such, was acting in the capacity of agent, servant and employee of the Defendant, City of New York. Defendant J. DAWKINS, was, at the times relevant herein, detective, assigned to the local NYPD Precinct,

located at New York City Police Department, 1 Police Plaza Path, New York, New York 10038. Defendant J. DAWKINS is being sued in his individual and official capacity.

18. Defendant, ANGEL THEVENIN (“THEVENIN”), was, at all times here relevant, a detective employed by the NYPD and, as such, was acting in the capacity of agent, servant and employee of the Defendant, City of New York. Defendant THEVENIN, was, at the times relevant herein, detective, assigned to the 90th NYPD Precinct, located at 211 Union Avenue, Brooklyn, New York 11211. Defendant THEVENIN is being sued in his individual and official capacity.

19. Defendant, DAVID DESIMONE (“DESIMONE”), was, at all times here relevant, a detective employed by the NYPD and, as such, was acting in the capacity of agent, servant and employee of the Defendant, City of New York. Defendant DESIMONE, was, at the times relevant herein, detective, assigned to the Narcotics Borough of the Bronx, located at New York City Police Department, 1 Police Plaza Path, New York, New York 10038. Defendant DESIMONE is being sued in his individual and official capacity.

20. Defendant, OMAIN FREELAND (“FREELAND”), was, at all times here relevant, a detective employed by the NYPD and, as such, was acting in the capacity of agent, servant and employee of the Defendant, City of New York. Defendant FREELAND, was, at the times relevant herein, detective, assigned to the local NYPD Precinct, located at New York City Police Department, 1 Police Plaza Path, New York, New York 10038. Defendant FREELAND is being sued in his individual and official capacity.

21. Defendant, EDWARD NAJARRO (“NAJARRO”), was, at all times here relevant, a detective employed by the NYPD and, as such, was acting in the capacity of agent, servant and employee of the Defendant, City of New York. Defendant NAJARRO was, at the times relevant herein, detective, assigned to the Narcotics Borough of the Bronx, located at New York City Police Department, 1 Police Plaza Path, New York, New York 10038. Defendant NAJARRO is being sued in his individual and official capacity.
22. Defendant, PAUL DAWKINS (“P. DAWKINS”), was, at all times here relevant, a detective employed by the NYPD and, as such, was acting in the capacity of agent, servant and employee of the Defendant, City of New York. Defendant P. DAWKINS, was, at the times relevant herein, detective, assigned to the Narcotics Borough of the Bronx, located at New York City Police Department, 1 Police Plaza Path, New York, New York 10038. Defendant P. DAWKINS is being sued in his individual and official capacity.
23. Defendant, DARRYLE LAMB (“LAMB”), was, at all times here relevant, a detective employed by the NYPD and, as such, was acting in the capacity of agent, servant and employee of the Defendant, City of New York. Defendant LAMB, was, at the times relevant herein, detective, assigned to the Health and Wellness Section, located at New York City Police Department, 1 Police Plaza Path, New York, New York 10038. Defendant LAMB is being sued in his individual and official capacity.
24. Defendant, TIMOTHY HARRINGTON (“HARRINGTON”), was, at all times here relevant, a captain employed by the NYPD and, as such, was acting in the capacity of agent, servant and employee of the Defendant, City of New York. Defendant

HARRINGTON, was, at the times relevant herein, captain, assigned to the NYPD Building Maintenance Section, located at 50-98 59th Place, Woodside, New York 11377. Defendant HARRINGTON is being sued in his individual and official capacity.

25. At all relevant times, Defendants JOHN OR JANE DOE 1-10 were police officers, detectives, sergeants, captains, supervisors, policymakers or officials employed by the NYPD, or City of New York. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants, JOHN OR JANE DOE 1-10, as such knowledge is within the exclusive possession of Defendants.
26. The names JOHN OR JANE DOE 1–10 are fictitious and meant as placeholders for the Police Officers who violated the constitutional rights of Plaintiffs despite possessing no legal basis to do so, as Defendants did not possess any credible evidence against Plaintiff regarding the commission of any crime or offense.
27. At all relevant times herein, Defendants JOHN OR JANE DOE 1-10 were acting as agents, servants and employees of the City of New York, or the NYPD. Defendants JOHN OR JANE DOES 1-10 are being sued in their individual and official capacities.
28. At all relevant times herein, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

29. On, or about, November 20, 2019, at approximately 6:00 a.m., inside the vicinity of the 1322 Sterling Place, Apt. IL, within the County of Kings, City and State of New

York, Plaintiffs, Marlene and Megan were inside the apartment while Plaintiff Mr.

Hoyle was not in the said apartment.

30. Plaintiffs were caused to be illegally detained, questioned, seized, searched, and

arrested by Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J.

DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS,

LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10,

31. Plaintiffs Marlene and Megan, at said date and time, were lawfully present at said

location with Megan's children.

32. Plaintiff Mr. Hoyle, at said date and time, was not a resident of said location and was

not inside the apartment at said location.

33. Defendants, at said date and time, including CORDERO, GRIBBIN, ZEBROWSKI,

J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS,

LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, proceeded to unlawfully

enter said location and illegally search the apartment by rushing the door, without

consent or a judicially authorized search warrant or any other legal authority to do so.

34. Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS,

THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB,

HARRINGTON, and JOHN OR JANE DOE 1-10, then illegally detained and

questioned Plaintiffs Marlene and Megan as to the whereabouts of Plaintiff Mr. Hoyle

while conducting their illegal search of the apartment.

35. Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS,

THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB,

HARRINGTON, and JOHN OR JANE DOE 1-10, then physically restrained and

illegally arrested Plaintiffs Marlene and Megan by contorting their arms behind their backs to which they affixed metal handcuffs in an excessively tight fashion, which resulted in substantial pain and physical discomfort to Plaintiffs' wrists.

36. Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, did not observe Plaintiffs Marlene and Megan commit a crime or observe them in possession of any contraband.
37. Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, lacked any probable cause or reasonable suspicion to arrest Plaintiffs Marlene and Megan, because Defendants never observed Plaintiffs commit any crime or violation of the law.
38. Due to the lack of probable cause for the seizure of Plaintiffs' persons, the aforementioned conduct constituted the completed torts of Assault and Battery by Defendants.
39. Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, then subjected Plaintiff Megan to illegal interrogation tactics by threatening her with a protracted criminal prosecution followed by a lengthy imprisonment, the loss of her children through child protective services, and the loss of her job if she did not comply with Defendants' demands to call the Defendants' true target and suspect, Plaintiff Mr. Hoyle.

40. Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, additionally communicated to Plaintiff Megan that they would not leave unless she called Plaintiff Mr. Hoyle.
41. As a result of her illegal detainment by Defendants, Plaintiff Marlene was caused to have a panic attack and was rushed to the hospital.
42. Plaintiffs Marlene and Megan assert that Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, falsely arrested and wrongfully detained Plaintiffs with the full knowledge that they had committed no crimes or violations of the law.
43. As a result, Plaintiffs Marlene and Megan were caused to be unlawfully, involuntarily, and continuously detained by Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, over the course of three hours.
44. Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, arrested and attempted to cause a criminal prosecution to be initiated against Plaintiff Megan, because of their desires to use Plaintiff's arrest and criminal prosecution as leverage against their true target Plaintiff Mr. Hoyle, to incur additional overtime compensation, benefits and career favor from the superior officers, to avoid adverse consequences associated with

failing to meet NYPD departmental arrest quotas and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence and information.

45. Plaintiff Mr. Hoyle then became present at said location approximately three hours after Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, unlawfully entered and illegally searched the apartment.
46. Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, then physically restrained and illegally Plaintiff Mr. Hoyle by rear handcuffing him in an excessively tight fashion, which resulted in substantial pain and physical discomfort to Plaintiff's wrists.
47. Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, did not observe Plaintiff Mr. Hoyle commit a crime or observe him in possession of any contraband.
48. Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, lacked any probable cause or reasonable suspicion arrest Plaintiff Mr. Hoyle, because Defendants never observed Plaintiff commit any crime or violation of the law.

49. Due to the lack of probable cause for the seizure of Plaintiff's person, the
aforementioned conduct constituted the completed torts of Assault and Battery by
Defendants.
50. Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS,
THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB,
HARRINGTON, and JOHN OR JANE DOE 1-10, then fabricated the observations to
justify their illegal search and seizure of Plaintiff Mr. Hoyle, including the possession
of a skimmer device and controlled substance that they each falsely purported to have
observed in plain view.
51. Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS,
THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB,
HARRINGTON, and JOHN OR JANE DOE 1-10, then forcibly removed Plaintiff
Mr. Hoyle to the 77th precinct by grabbing his person and shoving him into a police
transport vehicle.
52. Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS,
THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB,
HARRINGTON, and JOHN OR JANE DOE 1-10, then proceeded to criminally
process Plaintiff Mr. Hoyle, which included fingerprinting, retina scans and various
invasive bodily searches.
53. Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS,
THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB,
HARRINGTON, and JOHN OR JANE DOE 1-10, retaliated against Plaintiff Mr.
Hoyle by forwarding fabricated evidence to prosecutors, namely that Defendants

observed Plaintiff Mr. Hoyle to possess a skimmer device and controlled substance where Defendants falsely claimed to have observed the possession of a skimmer device and controlled substance in plain and open view.

54. Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, proceeded to suppress exculpatory evidence from prosecutors, so that Plaintiff Mr. Hoyle would be criminally prosecuted, namely that Plaintiff Mr. Hoyle was never observed inside the apartment, that the skimmer device and controlled substance were discovered pursuant to an unlawful search of the apartment, that a skimmer device and controlled substance were recovered from a location inaccessible to Plaintiff and that Plaintiff had exercised no dominion or control over the alleged skimmer device and controlled substance.

55. Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, based upon said fabricated observations, falsely informed prosecutors that Plaintiff, Mr. Boyle had exercised dominion and control over said skimmer device and controlled substance despite their full and complete knowledge that Plaintiff had committed no crimes or violations of the law and that a criminal prosecution would never succeed in the total absence of any probable cause to believe otherwise.

56. After Plaintiff Mr. Hoyle's arraignment, he was compelled to return to court multiple times to contest egregiously false criminal charges alleged against him by

- Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10.
57. Plaintiff Mr. Hoyle asserts that Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, falsely arrested, wrongfully detained, and maliciously prosecuted Plaintiff with the full knowledge that he had committed no crimes or violations of the law.
58. As a result, Plaintiff Mr. Hoyle was caused to be unlawfully, involuntarily, and continuously detained by defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, over the course of two days, until his release from physical custody on November 22, 2019.
59. Plaintiff Mr. Hoyle, therefore, asserts that due to the clear absence of any viable probable cause to warrant his criminal prosecution, at any point, he was denied his rights to fair trial and due process and was maliciously prosecuted from the moment of his arraignment, until the criminal proceeding was irrefutably terminated in favor of Plaintiff when all charges were outright dismissed and sealed on the merits on January 7, 2020 pursuant to section 160.50 of the New York Criminal Procedure Law.
60. Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, arrested and attempted to cause a

criminal prosecution to be initiated against Plaintiff Mr. Hoyle because of their desires to use Plaintiff's arrest and criminal prosecution as leverage against their true target, to incur additional overtime compensation, benefits and career favor from the superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence and information.

61. Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, engaged in a conspiracy to falsely arrest and maliciously prosecute Plaintiff Mr. Hoyle by personally conferring with each other, regarding the fabrication of the aforementioned non-existent evidence and observations, as well the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

62. Plaintiffs assert that the Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, who violated Plaintiffs' civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have

become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

63. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.
64. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via some incontrovertible form of evidence.
65. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the

officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

66. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

67. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies

that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

68. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun Cases, Suspicion Turns to the Police," by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) "Detective is Found Guilty of Planting Drugs," by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) "The Drugs? They Came From the Police," by Jim Dwyer, *The New York Times*, October 13, 2011.

69. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled "2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D." This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The

- report further impugned the NYPD's commitment to combat the prejudices and the biases exhibited by many of its officers.
70. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff's arrest without probable cause.
71. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.
72. Defendants' actions, pursuant to Plaintiffs' underlying arrests, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.
73. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become

known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

74. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.
75. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants, CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10.
76. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing

violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

77. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct
78. The aforementioned acts of Defendants, including CORDERO, GRIBBIN, ZEBROWSKI, J. DAWKINS, THEVENIN, DESIMONE, FREELAND, NAJARRO, P. DAWKINS, LAMB, HARRINGTON, and JOHN OR JANE DOE 1-10, directly or proximately resulted in the deprivation or violation of Plaintiffs' civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.
79. As a direct or proximate result of said acts, Plaintiffs were caused to suffer the loss of their liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION
Unlawful Search and Seizure Under
New York State Law

80. The above paragraphs are here incorporated by reference as though fully set forth herein.
81. Defendants subjected Plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.
82. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their person and property.
83. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or property.
84. The unreasonable searches and seizures to Plaintiffs' persons and properties were not otherwise privileged.
85. Accordingly, Defendants violated Plaintiffs' right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.
86. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
87. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION
Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

88. The above paragraphs are here incorporated by reference as though fully set forth herein.

89. Defendants subjected Plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.
90. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and property.
91. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or property.
92. The unreasonable searches and seizures to Plaintiffs' person and property were not otherwise privileged.
93. Accordingly, Defendants violated Plaintiffs' right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.
94. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

95. The above paragraphs are here incorporated by reference as though fully set forth herein.
96. Defendants subjected Plaintiff Mr. Hoyle to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.
97. Plaintiff Mr. Hoyle was conscious of his confinement.
98. Plaintiff Mr. Hoyle did not consent to his confinement.
99. Plaintiff Mr. Hoyle's arrest and false imprisonment was not otherwise privileged.

100. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

101. As a direct and proximate result of this unlawful conduct, Plaintiff Mr. Hoyle sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

102. The above paragraphs are here incorporated by reference as though fully set forth herein.

103. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff Mr. Hoyle.

104. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff Mr. Hoyle was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

105. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff Mr. Hoyle.

106. As a direct and proximate result of this unlawful conduct, Plaintiff Mr. Hoyle sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

107. The above paragraphs are here incorporated by reference as though fully set forth herein.

108. At all relevant times, Defendants caused Plaintiffs to fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.

109. Defendants engaged in and subjected Plaintiffs to immediate harmful and/or offensive touching and battered them without their consent or justification.

110. Due to the intentional, willful and unlawful acts of Defendants, Plaintiffs suffered damages.

111. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

112. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

113. The above paragraphs are here incorporated by reference as though fully set forth herein.

114. The Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.

115. Defendants engaged in and subjected Plaintiffs to immediate harmful and/or offensive touching and battered them without their consent.

116. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

117. The above paragraphs are here incorporated by reference as though fully set forth herein.

118. Defendants initiated the prosecution against Plaintiff Mr. Hoyle.

119. Defendants lacked probable cause to believe Plaintiff Mr. Hoyle was guilty or that the prosecution would succeed.

120. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

121. The prosecution was terminated in Plaintiff Mr. Hoyle's favor, when all criminal charges were unconditionally dismissed and sealed.

122. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff Mr. Hoyle suffered significant damages.

123. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

124. As a direct and proximate result of this unlawful conduct, Plaintiff Mr. Hoyle sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

125. The above paragraphs are here incorporated by reference as though fully set forth herein.

126. Defendants initiated the prosecution against Plaintiff Mr. Hoyle.

127. Defendants lacked probable cause to believe Plaintiff Mr. Hoyle was guilty or that the prosecution would succeed.

128. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

129. The prosecution was terminated in Plaintiff Mr. Hoyle's favor, when all criminal charges were unconditionally dismissed and sealed.

130. Defendants violated Plaintiff Mr. Hoyle's Fourth and Fourteenth Amendment rights by causing Plaintiff to remain unlawfully incarcerated after his arraignment and trial by jury

131. As a direct and proximate result of this unlawful conduct, Plaintiff Mr. Hoyle sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION
Malicious Abuse of Process Under
New York State Law

132. The above paragraphs are here incorporated by reference as though fully set forth herein.

133. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff Mr. Hoyle to compel the compliance or forbearance of some act.

134. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff Mr. Hoyle, especially with the absence of any cognizable probable cause.

135. Defendants intended to inflict substantial harm upon Plaintiff Mr. Hoyle.

136. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff Mr. Hoyle's criminal prosecution.

137. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

138. As a direct and proximate result of this unlawful conduct, Plaintiff Mr. Hoyle sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION
Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

139. The above paragraphs are here incorporated by reference as though fully set forth herein.

140. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff Mr. Hoyle to compel the compliance or forbearance of some act.
141. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
142. Defendants intended to inflict substantial harm upon Plaintiff Mr. Hoyle.
143. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff Mr. Hoyle's criminal prosecution.
144. Defendants' actions deprived Plaintiff Mr. Hoyle of their constitutional rights to be free from illegal searches and seizures and to not be deprived of his liberty without the due process of law in violation of the Fourth and Fourteenth Amendments to the United States Constitution.
145. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law

146. The above paragraphs are here incorporated by reference as though fully set forth herein.
147. Defendants fabricated false evidence to be used against Plaintiff Mr. Hoyle that was likely to influence a jury's decision.
148. Defendants forwarded said false information to prosecutors within the District Attorney's Office.
149. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiff Mr. Hoyle's liberty and freedom of movement.

150. Accordingly, Defendants violated Plaintiff Mr. Hoyle's right to fair trial, pursuant to Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

151. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

152. As a direct and proximate result of this unlawful conduct, Plaintiff Mr. Hoyle sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

153. The above paragraphs are here incorporated by reference as though fully set forth herein.

154. Defendants fabricated false evidence to be used against Plaintiff Mr. Hoyle that was likely to influence a jury's decision.

155. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

156. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiff Mr. Hoyle's liberty and freedom of movement.

157. Accordingly, Defendants violated Plaintiff Mr. Hoyle's right to fair trial, pursuant to the Fifth, Sixth and Fourteenth Amendments to United States Constitution.

158. As a direct and proximate result of this unlawful conduct, Plaintiff Mr. Hoyle sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 and 1986 Against Individual Defendants

159. The above paragraphs are here incorporated by reference as though fully set forth herein.

160. Defendants engaged in a conspiracy against Plaintiff Mr. Hoyle to deprive Plaintiff of his rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of his liberty or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

161. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff Mr. Hoyle.

162. As a result, Plaintiff Mr. Hoyle sustained injuries to his person, was deprived of his liberties or was deprived of rights or privileges of citizens of the United States.

163. Defendants' conspiracy was motivated by a desire to deprive Plaintiff Mr. Hoyle of his civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

164. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff Mr. Hoyle's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

165. Accordingly, Defendants violated Plaintiffs Mr. Hoyle's rights, pursuant to the Fourth, Fifth, Sixth and/or Fourteenth Amendments to the United States Constitution.

166. As a direct and proximate result of this unlawful conduct, Plaintiff Mr. Hoyle sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTIONFailure to Intervene Under
New York State Law

167. The above paragraphs are here incorporated by reference as though fully set forth herein.
168. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.
169. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
170. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTIONFailure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

171. The above paragraphs are here incorporated by reference as though fully set forth herein.
172. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.
173. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
174. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION**Negligent Hiring, Training, Retention and Supervision Under
New York State Law**

175. The above paragraphs are here incorporated by reference as though fully set forth.

176. Defendant City owed a duty of care to Plaintiffs to adequately hire, train, retain and supervise its employee Defendants.

177. Defendant City breached those duties of care.

178. Defendant City placed Defendants in a position where they could inflict foreseeable harm.

179. Defendant City knew or should have known of its employee Defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiffs.

180. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiff.

181. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION**Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City**

182. The above paragraphs are here incorporated by reference as though fully set forth.

183. Defendant City maintained a policy or custom that caused Plaintiffs to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiffs, to such violative behavior.

184. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.
185. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with Defendant City's employees.
186. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiffs' Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City's employees.
187. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.
188. Defendant City's conduct caused the violation of Plaintiffs' civil rights enumerated within the Constitution of the United States.
189. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) Awarding Plaintiffs' punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- s) Awarding Plaintiffs' reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;

Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiffs demand a trial by jury.

Dated: November 5, 2021



SIM & DEPAOLA, LLP
By: ATAUR RAQUIB, Esq.
Attorneys for Plaintiffs
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ATTORNEY VERIFICATION

I, Ataur Raquib, Esq., an attorney admitted to practice in the courts of New York State, state that I am an partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs is because Plaintiffs resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
November 5, 2021



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Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

MARLENE BAPTISTE, MEGAN BAPTISTE, AND ROMELL HOYLE,

Plaintiffs,

-against-

CITY OF NEW YORK, MELVIN CORDERO, BRIAN GRIBBIN, PIOTR ZEBROWSKI, JASON
DAWKINS, ANGEL THEVENIN, DAVID DESIMONE, OMAIN FREELAND, EDWARD NAJARRO,
PAUL DAWKINS, DARRYLE LAMB, TIMOTHY HARRINGTON, AND JOHN OR JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
By: Ataur Raquib, Esq.
Attorneys for Plaintiffs
42-40 Bell Boulevard Suite 405
Bayside, New York 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for